

25SMCV00988 25SMCV00988

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-06-26

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Case Number: 25SMCV00988 Hearing Date: June 26, 2026 Dept: N

TENTATIVE ORDER

Plaintiff Faramarz Shamoeil's Motion for Attorney's Fees, Costs, and Expenses is GRANTED in the reduced amount of \$10,305 as to attorney fees. Costs shall be awarded per statute.

Plaintiff Faramarz Shamoeil to give notice.

Defendant does not dispute that Plaintiff is entitled to recover fees and costs here. Rather, Defendant argues that there is no basis to award \$37,080.90 to Plaintiff, which consists of \$30,332.50 in attorney fees, a multiplier of 1.2 for a total of \$6,066.50, and costs and expenses of \$681.90. The Court has reviewed the motion and the billing sheets provided and finds that the requested fees are excessive and must be reduced. First, there is no basis to employ a multiplier here. While Plaintiff's counsel took on the case on a contingency basis, this alone does not warrant a multiplier, and the Court cannot conclude that there are other factors warranting a multiplier. Plaintiff's counsel is in the business of litigating Song-Beverly actions, meaning that many documents consist of work already done and merely edited to account for a different plaintiff, defendant, vehicle, and defect. There is no particular novelty in the work performed, as the Court itself sees that many Song-Beverly actions are substantially similar to each other, and there are no facts showing that this case was unique. Put simply, the skill employed by Plaintiff's counsel in litigating this action led to the settlement itself, and there is no basis to employ a multiplier in this action.

The Court also reduces the hourly rate from \$675 per hour to \$450 per hour, as neither the case itself nor any of the tasks in this action were particularly complex. The Court also reduces the hours to reduce time spent collecting and reviewing repair records by 5.0 hours; reduce time spent preparing to file and filing the complaint by 2.0 hours; reduce time spent relating to the Case Management Statements and Conference by 1.5 hours; omit time spent preparing an opposition to Defendant's motion to compel arbitration by 3.4 hours, given that the motion was not opposed on the papers or at the hearing; and reduce the time spent on this fee motion by 4.7 hours; and reduce the time spent reviewing the opposition to this motion, preparing a reply, and attending the motion hearing by 5.6 hours. Thus, the Court reduces the total amount of attorney hours to 22.9 hours at an hourly rate of \$450 per hour, and the Court does not employ a multiplier, for total attorney fees award of \$10,305. Accordingly, Plaintiff Faramarz Shamoeil's Motion for Attorney's Fees, Costs, and Expenses is GRANTED in the reduced amount of \$10,305 as to attorney fees. Costs shall be awarded per statute.